Discuss and Possibly Adopt Revisions to Board Policy EHBAG (Local)

Recommendation:
That the Board of Trustees adopt updated Local Board Policy EHBAG (Local) Special Education Legal Cost Transparency.

Explanation:
The Administration recommended revisions to Board Policy EHBAG (Local) Special Education Legal Cost Transparency. The Administration recommends that the updated Board Policy EHBAG (Local) be adopted as presented.

Policy Reference: EHBAG Local

Recommended by:

Dr. Ted Landry
Interim Superintendent of Schools

Special Education Legal Cost Transparency

In accordance with state and federal law, the District shall provide parents and guardians of students with disabilities required information about their rights. The District shall seek to resolve potential disputes with parents and guardians of students with disabilities at the ARD committee level.

For this policy legal fees means all legal fees and costs incurred by the District, including but not limited to fees or costs for either a parent or guardian, and school district legal fees and costs of any kind, and settlement amounts, if any.

Legal Report

If the District incurs any legal fees for a students with disabilities or Section 504 of the Rehabilitation Act, the General Counsel shall submit, after Superintendent review and approval, to the Board a monthly confidential attorney-client privileged report. The report format shall be approved by the Board. The report may include:

1. Estimated current legal fees incurred fiscal year-to-date;
2. The general topic;
3. Anticipated next District steps;
4. If the dispute has entered formal administrative litigation (contested cases or disputes resolved under the jurisdiction of an administrative agency) or judicial litigation (disputes resolved in the judicial branch of the government):
    a. Copies of the parent or guardian's unedited complaint(s);
    b. A summary of the District position in the dispute, including the legal claims, defenses, and relief sought; and
    c. A timeline and summary of any District efforts to resolve the dispute.

To the extent practicable, the report shall not include any information prohibited from public release by the Family Education Rights and Privacy Acts of 1974 (FERPA) or any personal identifying information. The confidential report shall not be released publicly and is not subject to disclosure under Chapter 552, Government Code.

Financial Report

Each quarter, the District shall post on its website a report. The report format shall be approved by the Board. The report may include legal fees incurred by the District concerning students with disabilities or Section 504 of the Rehabilitation Act. The report may consist of of the previous two fiscal years and the current fiscal year-to-date total aggregate spending on legal fees. In addition, the report will include for the current fiscal year the total aggregate expenditure on legal fees, with estimates for legal fees disaggregated by general legal topic, such as ARD, administrative litigation or judicial litigation.

The report shall not include any information prohibited from public release by the Family Education Rights and Privacy Acts of 1974 (FERPA) or any personal identifying information.

Transition

The reports required by this policy shall be implemented as soon as practicable but no later than February 1, 2026.